

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT  
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,  
d/b/a COLONIAL MOBILE MANOR,  
Plaintiff,

vs.

Case No. 2024-CC-003012

PATRICIA A. EVERINGHAM, LISA  
EVERINGHAM and ANY  
UNKNOWN PARTY(s) IN POSSESSION,  
Defendants.

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**MOTION FOR DEFAULT JUDGMENT FOR POSSESSION OF PREMISES**

**COMES NOW** the Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, d/b/a COLONIAL MOBILE MANOR, by and through the undersigned counsel and moves this Honorable Court to grant a Default Judgment against the Defendants, PATRICIA A. EVERINGHAM, LISA EVERINGHAM and ANY UNKNOWN PARTY(s) IN POSSESSION, for possession of the subject premises and in support of this motion states:

1. Plaintiff has brought an action for possession of residential premises in a mobile home park pursuant to Fla. Stat. §723.061, for damages and for other relief.
2. Plaintiff has served Defendants PATRICIA A. EVERINGHAM, LISA EVERINGHAM and ANY UNKNOWN PARTY(s) IN POSSESSION, via personal service on September 3, 2024, and unknown tenants by posting on September 3, 2024 after complying with Fla. Stat. §48.184 (summons of unknown party in possession evidences two attempts at service, during business hours and after business hours, and posting thereafter).
3. The summonses served upon the Defendants require the Defendants to file a pleading responsive to the complaint, pay the accrued rent into the registry of the court and to request determination of the rent owed, by September 11, 2024. A copy of the summonses with service are incorporated into this motion as "Exhibit A".
3. On September 4, 2024, Defendant, PATRICIA A. EVERINGHAM filed a responsive pleading listing reasons that she should not be forced to move, but did not pay mandatory rent into the Registry of the Court, which is an absolutely mandatory obligation to prevent a default.

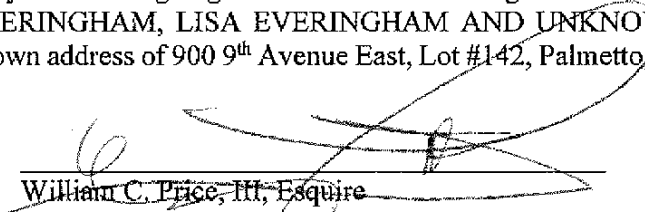
4. A judgment for possession should be entered in this cause because the time for the Defendants to both dispute the claim and pay rent into the Registry of the Court expired on September 11, 2024.
5. According to the complaint, the Defendants are not merely one month in arrears; as of the month of August, which has expired, the defendants were three months in arrears.
6. Based upon the allegations of the complaint, including the month of September, 2024 but not including late fees, filing fees, service of process and accrued attorney fees, the Defendants owe \$3,219.30.
6. The Defendants did not ever seek a determination of rent owed.
7. A proposed judgment for possession is incorporated into this Motion and attached as "Exhibit B".  
The writ of possession shall not take effect until ten days after the granting of the Judgment for Possession.

Wherefore the Plaintiff moves this Honorable Court for an Order granting it a writ of possession for the subject property, and to reserve on the other issues in the complaint.

**RESPECTFULLY SUBMITTED** this 17<sup>th</sup> day of September, 2024.

**CERTIFICATE OF SERVICE**

I HEREBY CERTIFY that a true copy of the foregoing Motion for Default Judgment has been furnished by U.S. Mail to PATRICIA A. EVERINGHAM, LISA EVERINGHAM AND UNKNOWN PARTY(s) IN POSSESSION(s) at their last known address of 900 9<sup>th</sup> Avenue East, Lot #142, Palmetto, FL 34221 this 17<sup>th</sup> day of September, 2024.

  
William C. Price, III, Esquire

Florida Bar No. 0333824

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